

even simple things on some days, depending on the day and how he felt. (Borchard Decl. ¶¶6.) Neither party has offered evidence to show Plaintiff's physical, mental, or emotional condition on the day he signed the arbitration agreement. The declaration from Jevan Carey does not attest to Plaintiff's condition on February 18, 2024. (Wright Decl. Ex. C.)

The evidence from Borchard is compelling. Plaintiff is an elderly individual who, at the time he signed the arbitration agreement, was recovering from numerous surgeries and medical complications. Plaintiff relied on his sister as his Power of Attorney and, despite that designation, Defendant presented Plaintiff with the arbitration agreement independently of Borchard. Plaintiff had difficulty hearing and understanding conversations. Plaintiff was the type of person to sign documents without question. Depending on the day, he could not understand simple, let alone complex, things. Based on the evidence before the court, it appears Plaintiff could not enter in a valid contract at the time he is purported to have signed the arbitration agreement.

3.

CASE #	CASE NAME	HEARING NAME
CVME2504023	PERRY VS DRIVEN I/O	DEMURRER

Tentative Ruling: Evidentiary objections sustained. Sanctions denied. General and Special Demurrer are overruled. Cross-Defendant to file responsive pleading within 20 days. Cross-Complainants objects to paragraphs 7, 9, 10 and Exhibits B (Plaintiff's Discovery Responses) and C (email by Plaintiff) contained in Santos's declaration. The objections are sustained as they are extrinsic evidence. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

Cross-Complainants cite *Notable Fin. LLC v. Woolverton*, 2024 Cal. Super. LEXIS 76320* to request sanctions in the amount of \$1,000 for Plaintiff's improper use of extrinsic evidence. However, this case is a trial court order which does not have precedential value. (See e.g., *Harrott v. County of Kings* (2001) 25 Cal.4th 1138, 1148; *Santa Ana Hospital Medical Center v. Belshe* (1997) 56 Cal.App.4th 819, 831; *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761; *City of Bakersfield v. West Park Home Owners Assn. & Friends* (2016) 4 Cal.App.5th 1199, 1210 ["Accordingly, we will neither rely upon, nor take judicial notice of, these orders"].)

1st Cause of Action: Negligence -The elements for a negligence claim are duty on the part of the defendant toward plaintiff; defendant's breach of that duty, and harm to plaintiff caused by the breach. (*Kesner v. Superior Court* (2016) 1 Cal.5th at 1132, 1142.)

In the present case, the FACC alleges Plaintiff owed Driven a duty to exercise reasonable care that included observing all of Driven's policies and procedures and not deleting Driven data. (FACC ¶15.) As a bailee of the laptop, Plaintiff had a duty to return it in good working condition. (*Id.* at ¶16.) Plaintiff breached her duties by failing to return the laptop in working condition, instead leaving it password protected such that Cross-Complainants were deprived of use of the laptop. (*Id.* at ¶17.) Plaintiff also breached her duties by wiping the laptop clean which violated Driven's policies and California law of

deleting records that could be relevant to claims Plaintiff would assert against Driven in violation of Penal Code section 135. (*Id.* at ¶18.)

Taking the foregoing allegations as true for purposes of demurrer, the FACC sufficiently pleads a cause of action for negligence.

Plaintiff argues the FACC pleads intentional conduct, which precludes recovery under a negligence theory, but none of the cases Plaintiff cite support this argument. *Fire Ins. Exchange v. Superior Court* (2010) 181 Cal.App.4th 338, 393 discusses the distinction of “accident” as an act giving rise to liability versus a person’s intent to cause harm. *Southern California Gas Leak Cases* (2019) 7 Cal.5th 391, 397 discussed whether a plaintiff can recover purely economic losses in a negligence claim. *Centinela Freeman Emergency Medical Associates, et al. v. Health Net of California, Inc.* (2016) 1 Cal.5th 994, 293 discussed the threshold element of duty to use due care “toward an interest of another that enjoys legal protection against unintentional invasion”. The cases do not hold recovery is barred when a complaint pleads intentional conduct. Thus, Plaintiff fails to cite legal authority to support her argument.

Plaintiff next contends the bailee theory fails because the laptop was physically returned, that spoliation of evidence is not an independent tort in California, and the FACC contradicts with Plaintiff’s original complaint. However, these arguments are based on extrinsic evidence, Santos’s declaration, and the Court must disregard them. Plaintiff takes issue with the FACC’s allegation that Cross-Complainants were deprived of use of the laptop and exposed to substantial damages because the FACC fails to allege any specific quantifiable monetary loss. However, the FACC alleges all elements for a claim of negligence, which does not require proof of a monetary amount. Instead, negligence requires harm, which the FACC alleges, to wit: the deprivation of use of the laptop because Plaintiff refused to give Driven the password to access the laptop despite multiple requests (FACC ¶¶13, 17) and denial of access to records because Plaintiff deleted such records (*id.* at ¶18). Again, Plaintiff’s cited authority to support her argument is inapplicable - *Itano v. Colonial Yacht Anchorage* (1968) 267 Cal.App.2d 84, 90 dealt with a cause of action for conversion and actual damages and “[t]he case was not tried on the theory of negligence.

2nd Cause of Action: Violation of Comprehensive Computer Data Access and Fraud Act Penal Code § 502 -Penal Code section 502 affords protection to

“individuals, businesses, and governmental agencies from tampering, interference, damage, and unauthorized access to lawfully created computer data and computer systems.” The California Computer Data Access and Fraud Act (“CDAFA”) provides that any person who commits the following acts is guilty of a public offense: “(1) Knowingly access and without permission...uses any data, computer, computer system, or computer network in order to...wrongfully control or obtain money, property, or data; [or] (2) Knowingly access and without permission takes, copies, or makes use of any data from a computer, computer system, or computer network, or takes or copies any supporting documentation, whether existing or residing internal or external to a computer, computer system or computer network.” (Pen. Code, §§ 502, subd. (c)(1)(B) & (c)(2).)

In a civil cause of action for violation of the CDAFA, a plaintiff must prove the following: (1) plaintiff is the owner of the computer; (2) defendant knowingly access and without permission used plaintiff’s data or computer in order to wrongfully control or obtain data and/or knowingly accessed and without permission took copies or made use of any data from a computer [Pen. Code, §§502, subd. (c)(1)(B) and (c)(2)]; (3) defendant’s access

was without plaintiff's permission; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI 1812.)

The FACC alleges Social Catfish is the owner of the laptop and Driven is the service provider and agent for Social Catfish that has an interest in the data on the laptop, thus standing is established. (FACC ¶¶21-22.) It is alleged that Plaintiff's "affirmative actions of deleting data, not returning the laptop as required and locking the computer, in contravention of company policies, were knowingly made" to Cross-Complainants' detriment. (*Id.* at ¶23.) Plaintiff's conduct is alleged to violate numerous provisions of the CDAFA. (*Id.* at ¶24.) Cross-complainants have not been able to unlock the laptop, and the deletion of data was for the purpose of defrauding and deceiving Driven about Plaintiff's claims and to prevent Driven from using the data as a defense in violation of Penal Code section 502, subdivision (c)(1). (*Id.* at ¶¶25-26.) Cross-Complainants are alleged to have suffered damages exceeding \$250. (*Id.* at ¶27.)

Several of Plaintiff's arguments attacking the second cause of action improperly rely on extrinsic evidence, to wit: that she was an authorized user during the alleged conduct and thus could not have acted without permission; that Driven had alternative means of accessing the laptop; and that company records showing systemic company issue of locked laptops with departing employees are in contradiction with Plaintiff's conduct being criminal. Extrinsic evidence must be disregarded by the Court. Regardless, the plain language of Penal Code section 502, subdivision (c)(2) makes clear the conduct must be knowing and "without permission," which the FACC does allege.

Plaintiff contends her refusal to assist a former employer post-termination in accessing the laptop is not an affirmative disruption in computer services. This argument is a distinction without a difference. Cross-Complainants are unable to access her laptop and are prevented from accessing the data on the laptop. (FACC ¶¶25-26.) Moreover, contrary to Plaintiff's contention that damages fail to meet the statutory threshold, Penal Code 502, subdivision (h)(2) sets damage amount of exceeding \$250.

Merits – Special Demurrer for Uncertainty - A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) Plaintiff's special demurrer disputes facts stated in the FACC, and as such, it cannot be "so ambiguous or unintelligible [she] cannot reasonably respond."